

WEBSITE DEVELOPMENT & MAINTENANCE AGREEMENT

Agreement Date: _____, 2025

PARTIES TO THIS AGREEMENT

SERVICE PROVIDER (Developer):

Name: _____

Address: _____

Phone: _____

Email: _____

CLIENT:

Name: Mrs. Eunice Waweru

Organization: Workers Rights Watch

Address: Nairobi, Kenya

Phone: _____

Email: _____

1. PROJECT OVERVIEW

This Agreement is for the development and ongoing maintenance of a professional website for Workers Rights Watch, a registered society in Kenya.

Website URL: www.workersrightswatch.org (or as specified by Client)

Project Status: 95% Complete - Ready for final delivery upon payment

2. SCOPE OF WORK - WHAT'S DELIVERED

A. Website Development (Complete)

The Developer has completed a professional 10-page website including:

1. **Home Page** - Hero section, impact statistics, photo gallery, partner logos, live Twitter feed
2. **About Us Page** - Vision, mission, objectives, core values, organizational approach
3. **Our Team Page** - Leadership profiles, board members, interactive team bios
4. **Our Programs Page** - Complete program descriptions and initiatives
5. **Our Work Page** - Project highlights and case studies
6. **Resources Page** - Articles, reports (4 PDFs), videos, training manuals, photo gallery (12+ images)
7. **Activities Page** - Event showcases and community engagement
8. **Careers Page** - Job postings and volunteer application system
9. **Contact Page** - Contact form with email integration
10. **Donate Page** - Multi-currency donation system (Stripe, M-Pesa, PayPal integration ready)

B. Features & Functionality Delivered

- ✓ Mobile-responsive design (works on all devices)
- ✓ Dark/Light theme toggle
- ✓ Animated transitions and counters
- ✓ Photo galleries with lightbox viewer
- ✓ Document download system (PDF reports)
- ✓ Twitter/X feed integration (live tweets)
- ✓ Partner logo carousel (18+ organizations)
- ✓ Contact form with email notifications
- ✓ Job application system with CV upload
- ✓ Volunteer application system
- ✓ Search and filter functionality
- ✓ Multi-currency donation system (Stripe, M-Pesa, PayPal integration ready)
- ✓ SEO optimization (meta tags, sitemap, fast loading, structured data)
- ✓ Security features (SSL ready, form validation, spam protection)
- ✓ Email notification system (contact forms, applications)
- ✓ File upload system (CV/Resume handling)
- ✓ Image optimization and lazy loading
- ✓ Social media integration (Twitter/X feed, sharing buttons)
- ✓ Analytics ready (Google Analytics integration)
- ✓ Search functionality with category filtering
- ✓ Document management system (PDF downloads, online viewing)
- ✓ Interactive team profile modals
- ✓ Animated counters and statistics
- ✓ Partner logo carousel with hover effects
- ✓ Photo gallery with full-screen viewer and navigation

C. Technical Specifications

- Built with Next.js 15 (modern, fast, enterprise-grade)
- TypeScript for code reliability
- Fully responsive across all screen sizes
- Optimized for speed and performance
- Secure and scalable architecture

3. PRICING & PAYMENT TERMS

A. Development Fee (One-Time Payment)

Note: This is a custom website development project, not a basic template website. The cost reflects professional development work including 10 custom pages, advanced features, integrations, and modern design. Website development costs in Kenya range from KES 49,280 to KES 200,000+ depending on complexity and agency chosen. This investment represents mid-market pricing for custom development work.

Payment Schedule:

- First payment (50%): KES 37,500 - Due upon signing this agreement
- Second payment (50%): KES 37,500 - Due upon final delivery and approval
- Total: KES 75,000

Accepted payment methods: Bank Transfer or Cheque

B. Monthly Maintenance & SEO Services

Monthly Fee: KES 15,000 (Fixed rate for first 3 years)

Note: This monthly rate is fixed for the first three (3) years from the Maintenance Start Date. Beginning the first month of the fourth (4th) year (month 37), the monthly fee will increase by 10% to KES 16,500 and will remain fixed at that rate for the next 12 months, subject to further annual review.

Includes:

- Security updates and monitoring
- Bug fixes and technical support (response within 48 hours)
- Content updates (up to 2 hours per month)
- Image uploads (up to 10 images per month)

- Performance optimization
- SEO services (keyword research, analytics, monthly reports)
- 99.9% uptime monitoring

Payment Terms:

- Due on the 1st day of each month
- Cancel with 30 days written notice
- Late payments incur 5% fee after 7 days

Maintenance Start Date: Upon website launch or _____, 2025

4. WHAT'S REMAINING & SEPARATE SERVICES

A. Included in This Agreement (Upon Payment)

- Final website launch (1 day after payment confirmation)
- Training and documentation handover
- Google Analytics setup

B. Donation System Integration (Separate Agreement)

Note: Payment gateway integration (Stripe, M-Pesa, PayPal) is NOT included in this KES 75,000 development fee. This will be a separate service agreement with separate pricing. Once completed:

- Stripe and PayPal integration: 1 week after credentials provided
- M-Pesa integration: 20 days (includes testing)
- All donation flows tested and verified

This separation allows the website to launch immediately while donation system integration proceeds under separate terms.

5. TERMS & CONDITIONS

5.1 Payment Terms

- Development fee: 50% (KES 37,500) due upon signing, 50% (KES 37,500) due upon delivery
- Maintenance fees are due on the 1st day of each month

- Late payments incur a 5% late fee after 7 days
- Payments are non-refundable once work has commenced

5.2 Project Timeline

- Development: Complete (95%)
- Final setup: 1 week after payment and credentials provided
- Website launch: Upon Client approval

5.3 Intellectual Property & Ownership

- Upon full payment, all website code, design, and content ownership transfers to Client
- Client owns the website 100%
- Developer retains the right to showcase this project in portfolio
- Open-source libraries used remain under their respective licenses

5.4 Warranties & Support

Developer Warrants:

- Website is free from major defects
- All features function as described
- Code follows industry best practices
- Website is secure and optimized

Developer Does NOT Warrant:

- Website will be error-free 100% (no software is perfect)
- Compatibility with all future browser updates (covered by maintenance)
- Third-party service uptime (Stripe, PayPal, hosting providers)

Support Period:

- 30 days free bug fix support after launch
- After 30 days, support covered under maintenance agreement

5.5 What's NOT Included in Monthly Maintenance

The following are charged separately at KES 2,500-4,000 per hour:

- Major design changes or redesign

- New page creation
- New feature development
- Custom functionality additions
- Third-party integration changes (beyond initial setup)
- Training sessions (initial 2-hour handoff is included)

5.6 Maintenance Contract Terms

- Contract auto-renews monthly
- Client can cancel with 30 days written notice
- Developer can terminate for non-payment after 14 days
- Upon cancellation, website remains Client's property but no further support provided

5.7 Hosting & Domain

- Website hosted with Client's existing hosting provider "Kenya Website for Logistics"
- Developer coordinates deployment and provides technical assistance during launch
- Domain registration and renewals are Client's responsibility (~KES 2,500/year)
- Developer assists with DNS updates required for launch

5.8 Confidentiality

Both parties agree to keep confidential information private:

- Client's business information, donor data, financial information
- Developer's code, methodologies, proprietary processes
- This agreement remains confidential

5.9 Liability & Indemnification

- Developer's liability limited to total amount paid under this agreement
- Developer not liable for lost revenue, data loss, or indirect damages
- Client maintains regular backups (provided by Developer in maintenance)
- Client's content must not violate any laws or copyrights
- Client indemnifies Developer against claims arising from Client's content

5.10 Force Majeure

Neither party liable for delays caused by:

- Natural disasters, pandemics, war, civil unrest
- Internet/hosting service outages beyond Developer's control
- Third-party service failures (payment gateways, email services)

5.11 Dispute Resolution

- Both parties agree to resolve disputes amicably through discussion
- If unresolved, disputes shall be settled through mediation in Nairobi, Kenya
- Kenyan law governs this agreement

5.12 Changes & Amendments

- Any changes to this agreement must be in writing and signed by both parties
- Email agreements are acceptable if confirmed by both parties

5.13 Termination

- Client may terminate with 30 days notice (maintenance only) or for cause
- Developer may terminate for non-payment after 14 days or breach of terms
- Upon termination: paid work remains Client's property, outstanding payments due immediately, Developer provides final backup

6. DELIVERABLES CHECKLIST

Upon signing and payment, Developer will deliver:

- ☐ Complete website source code (if requested)
- ☐ Access to website hosting and admin panels
- ☐ Documentation: Website guide (README) and user manual
- ☐ 2-hour training session on basic website updates
- ☐ Email setup and configuration
- ☐ Payment gateway setup (upon receiving credentials)
- ☐ Google Analytics setup
- ☐ 30-day free bug fix support

7. CLIENT RESPONSIBILITIES

Client agrees to:

- ☐ Provide payment as per payment schedule (50% on signing, 50% on delivery)
- ☐ Provide payment gateway credentials (Stripe and PayPal) within 14 days
- ☐ Review and approve final website before launch
- ☐ Provide feedback and responses within 5 business days
- ☐ Maintain confidentiality of admin access credentials
- ☐ Register domain name (if not already done)

8. DEVELOPER RESPONSIBILITIES

Developer agrees to:

- ☐ Deliver website as described in Section 2
- ☐ Connect payment gateways (Stripe and PayPal) upon receiving credentials
- ☐ Test all functionality before launch
- ☐ Provide training and documentation
- ☐ Respond to support requests within 48 hours (maintenance period)
- ☐ Maintain website security and performance (during maintenance)
- ☐ Provide monthly SEO reports (during maintenance)

9. ACCEPTANCE & APPROVAL

Client Approval Statement:

"I, Mrs. Eunice Waweru, on behalf of Workers Rights Watch, have reviewed the website and confirm that it meets the specifications outlined in this agreement. I approve the website for launch."

Website Approval:

- ☐ Approved - Ready for launch
- ☐ Minor changes needed (list below):

10. AGREEMENT ACCEPTANCE

By signing below, both parties agree to all terms and conditions in this Agreement.

DEVELOPER SIGNATURE

Developer Name: _____

Signature: _____

Date: _____

ID/Passport Number: _____

CLIENT SIGNATURE

Client Name: Mrs. Eunice Waweru

Title: Executive Director, Workers Rights Watch

Signature: _____

Date: _____

Organization Stamp: (If available)

WITNESS (Optional but Recommended)

Witness Name: _____

Signature: _____

Date: _____

ID/Passport Number: _____

PAYMENT CONFIRMATION

Development Fee Confirmed: KES 75,000 (50% on signing, 50% on delivery)

First Payment Details:

- Amount: KES _____
- Date Paid: _____
- Payment Method: ☐ Bank Transfer ☐ Cheque
- Reference/Transaction ID: _____

Second Payment Details:

- Amount: KES _____
- Date Paid: _____
- Payment Method: ☐ Bank Transfer ☐ Cheque
- Reference/Transaction ID: _____

MAINTENANCE PAYMENT DETAILS

Monthly Fee: KES 15,000 (Fixed for first 3 years)

First Maintenance Payment Due: _____

Payment Method: ☐ Bank Transfer ☐ Cheque (recurring)

Note: Monthly rate will increase by 10% to KES 16,500 starting month 37 (first month of 4th year).

IMPORTANT: Each party should keep a signed copy of this agreement for their records.

This agreement constitutes the entire agreement between the parties and supersedes all prior negotiations, representations, or agreements, whether written or oral.

This document is legally binding once signed by both parties.

END OF AGREEMENT

APPENDIX A: CONTACT INFORMATION FOR ONGOING SUPPORT

Developer Contact:

- Email: _____
- Phone: _____
- WhatsApp: _____
- Business Hours: Monday-Friday, 9 AM - 6 PM EAT

Client Contact:

- Email: info@workersrightswatch.org
- Phone: _____
- Address: _____

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